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New bills aim to limit ICE tactics in California communities

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Author: Andrea Valadez | Section: California | 712 Words
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As California continues to fight against violent immigration enforcement, the state legislature got to work quickly this month, introducing more bills aimed at curbing what federal agents can do in the state.

Last year, the legislature and governor passed a flurry of bills targeting federal agents' tactics, including prohibiting agents from wearing masks in the state, requiring them to wear ID and giving schools stricter guidelines to deal with immigration enforcement. As we enter the second year of the current legislative session, California lawmakers don't show any signs of slowing down on the anti-ICE legislation.

SB 747

The No Kings Act advanced in the state Senate on Tuesday, bringing Californians closer to having the ability to sue federal officials who violate their Constitutional rights. The bill was authored by Sen. Scott Wiener, a San Francisco Democrat currently running for Congress, and Sen. Aisha Wahab of Oakland.

On Tuesday, Wiener cited the deaths of Renee Good and Alex Pretti during his floor speech.

Under current law, individuals are able to sue local and state officials for violating their rights, but the pathways are extremely limited for lawsuits to be brought against federal officials and agents. Wiener called this discrepancy "both unfair and deeply harmful."

The bill advanced along party lines, with the 10 Republican senators voting "no."

SB 873

Introduced earlier this month, Sen. Eloise Gómez Reyes from San Bernardino is proposing a bill that will prevent federal immigration agents from disrupting scheduled court appearances to conduct arrests.

The bill came following a ruling by a federal judge that ordered the Justice Department to stop arrests in immigration courts in Northern California.

"California is not going to let the federal government make political targets out of people trying to be good stewards of the law," Reyes said in a statement. "Discouraging people from coming to court makes our community less safe."

The bill has not yet been heard in the state Senate.

AB 1537

This bill would prohibit police officers and other local and state law enforcement from taking on second jobs as federal immigration agents.

"If your day job is protecting and serving communities in our state, then your night job can't be kidnapping and terrorizing those same communities," said bill author Isaac Bryan, a Democrat from Culver City, in an Instagram video earlier this month.

State and local officers who are already employees or independent contractors of the Department of Homeland Security (DHS) would be required to disclose that information. The bill states all records of secondary employment

relating to immigration enforcement would be deemed public information under the California Public Records Act.

The bill has not yet advanced through the Assembly.

Upcoming

Assemblymember Jesse Gabriel (D-Encino) announced on Monday that he plans to introduce two bills that put further guardrails on what immigration enforcement does in California.

Working with Assemblymember Juan Carrillo of Palmdale, the pair will introduce legislation that prohibits DHS agents from using state resources and properties as staging areas for their operations.

The L.A. County Board of Supervisors unanimously passed a similar ordinance earlier this month, establishing "ICE-free zones" that block federal immigration enforcement agents from operating on county-owned and controlled property.

"What we are seeing in Minnesota is a result of an administration that has normalized fear, intimidation and use of force in our communities. Do not be mistaken, what is happening in Minnesota will happen here," Carrillo said in a statement. "That is why I'm proud to join Assemblymember Gabriel to ensure federal agents do not continue to terrorize immigrant communities and American citizens in our state."

Following two federal officer-involved shootings in Minnesota this month, Gabriel is also set to introduce a bill that would require the state's attorney general to conduct an independent investigation into any and all shootings involving federal immigration enforcement agents. The bill expands on AB 1506 from 2020 that created independent investigations into police shootings.

Notably, Attorney General Rob Bonta himself issued guidance this week reminding state and local law enforcement that they have jurisdiction to investigate wrongdoing by federal officials.

"California cannot stand idly by while ICE agents terrorize our communities and murder American citizens in broad daylight," said Gabriel in a statement. "We must use our power and authority to protect our immigrant communities, push back on federal overreach and safeguard our constitutional rights. The violence and chaos from the Trump Administration's reckless and failed immigration policies must be stopped."

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